

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 09/02/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
3	30-2025-01525819 Woodbury Place Apartments LLC vs. Pugh	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 84), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 84). "On demurrer the allegations of the complaint are assumed to be true. A demurrer is simply not the appropriate procedure for determining the truth of disputed facts." (<i>Ramsden v. Western Union</i> (1977) 71 Cal.App. 3d 873, 879.) The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 calendar days. The Court sets this matter for jury trial per the demand for jury trial filed with the Court on 8/24/2026. The Court sets the matter for pre-trial on 9/16/2026 at 8:30 AM in Department C61 and Jury Trial for 9/21/2026 at 8:30 AM in Department C61. Counsel are to notify their respective clients of the trial dates. Attorneys are ordered to comply with Orange County Superior Court Local Rule 317 or the Court will issue sanctions pursuant to Local Rule 381 at the Pretrial Conference date.

4	30-2026-01542409 Gelt Oasis Exchange, LLC vs. Monroe	The Court has read and considered the Defendant's Motion to Vacate and Set Aside Default Judgment (ROA 25) and Defendant's Motion to Seal (ROA 27). Defendant failed to provide notice of the Motions pursuant to California Code of Civil Procedure section 1005 on opposing counsel. As notice of the motions are not proper, the Court DENIES the Defendant's Motions. The Court Clerk is to provide notice of the Court's ruling.
5	30-2026-01553185 Gelt Oasis Exchange, LLC vs. Monroe	The Court has read and considered the Defendant's Motion to Vacate and Set Aside Default Judgment (ROA 24) and Defendant's Motion to Seal (ROA 26). Defendant failed to provide notice of the Motions pursuant to California Code of Civil Procedure section 1005 on opposing counsel. As notice of the motions are not proper, the Court DENIES the Defendant's Motions. The Court Clerk is to provide notice of the Court's ruling.